IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/559,705
Confirmation Number:	6781
Filing Date:	March 6, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	Andrea Bennett
Title of Invention:	HIGH-BANDWIDTH, LOW-LATENCY DATA TRANSMISSION SYSTEM AND PROTOCOL

APPLICANT'S COMPLETE RESPONSE TO NOTICE TO FILE MISSING PARTS
(37 CFR §§ 1.52, 1.53(f); MPEP §§ 506, 601.01(a))
SUBMISSION OF COMPLIANT INVENTOR DECLARATION (37 CFR § 1.63)
SPECIFYING LEGAL NAME, MAILING ADDRESS, AND RESIDENCE ADDRESS
SUBMISSION OF REPLACEMENT ABSTRACT ON A SEPARATE SHEET
REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)
PETITION FOR EXTENSION OF TIME (37 CFR § 1.136(a))
AND CONDITIONAL REQUEST FOR SUSPENSION OF ACTION (37 CFR § 1.103)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice to File Missing Parts of Nonprovisional Application mailed on April 9, 2026, and in view of the Decision on Petition under 37 CFR § 1.183 mailed on October 1, 2026, the *pro se* Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, substantive response curing all noted pre-examination formalities and fee deficiencies.

I. EXECUTIVE SUMMARY OF CURED ITEMS

Applicant has completely and successfully cured every formality and fee item cited in the April 9, 2026 Notice to File Missing Parts and the October 1, 2026 Decision on Petition in accordance with 37 CFR §§ 1.52, 1.53(f), 1.63, and MPEP §§ 506, 601.01(a):

1. **Compliant Inventor's Declaration (37 CFR § 1.63; MPEP § 605):** Submitted herewith as a standalone document, setting forth the inventor's legal name, citizenship, mailing address (2302 Britton Ridge Drive, Katy, TX 77494), and legal residence address (26714 Valleyside Drive, Katy, TX 77494), resolving the address deficiency noted in the October 1, 2026 Petition Decision.
2. **Replacement Abstract on a Separate Sheet (37 CFR § 1.72(b); MPEP § 608.01(b)):** Submitted herewith as a standalone document, containing the complete text of the original Abstract commencing on its own separate page.
3. **Reaffirmation of Small Entity Status (37 CFR § 1.27):** Applicant formally reaffirms Small Entity status under 37 CFR § 1.27 (established on July 31, 2026), withdraws any prior assertion of Micro Entity status, and authorizes payment and reconciliation of all statutory Small Entity fees.
4. **Petition for Extension of Time (37 CFR § 1.136(a); MPEP § 710.02(e)):** Submitted herewith, petitioning for an extension of time under 37 CFR § 1.136(a) to maintain this application in active pendency through the response date.
5. **Conditional Request for Suspension of Action (37 CFR § 1.103(a); MPEP § 709):** Submitted concurrently, requesting a six-month suspension of action on the merits to take effect immediately upon pre-examination clearance and docketing to Technology Center 2100.

II. STATEMENT OF COMPLIANCE AND DETAILED RESPONSES

1. Compliance with Inventor Declaration Requirements (37 CFR § 1.63)

The Decision on Petition dated October 1, 2026 noted that while Applicant previously filed declarations on July 21 and July 22, 2026, those filings did not specify both the mailing address and legal residence of the inventor.

Applicant hereby submits a fully compliant **Inventor's Declaration under 37 CFR § 1.63** set forth as a standalone document, explicitly providing:

- **Legal Name:** Reinaldo Javier Aguiar Marcano;
- **Citizenship:** United States of America;
- **Mailing Address (Office/Correspondence):** 2302 Britton Ridge Drive, Katy, Texas 77494; and
- **Legal Residence Address:** 26714 Valleyside Drive, Katy, Texas 77494, USA.

This completely cures all oath/declaration requirements under 35 U.S.C. § 115 and 37 CFR § 1.63.

2. Technical Compliance: Replacement Abstract Commencing on a Separate Sheet

The Notice to File Missing Parts noted that the originally filed application integrated the Abstract on the first page of the specification rather than commencing on a separate sheet.

Applicant hereby submits a standalone Replacement Abstract sheet pursuant to 37 CFR § 1.121:

- **Replacement Abstract Sheet:** The complete Abstract of the technical disclosure is set forth on a single, clean separate page, commencing on its own separate sheet in full compliance with 37 CFR § 1.72(b) and MPEP § 608.01(b).
- **Preservation of Claims:** Original Claims 1 through 23 were filed commencing on a separate sheet on March 6, 2026 in full compliance with 37 CFR § 1.75(h), and remain unchanged.

No new matter is introduced. The text of the Abstract is identical to that presented in the original March 6, 2026 nonprovisional filing.

3. Establishment of Entity Status and Fee Reconciliation (37 CFR § 1.27)

Applicant previously filed a Small Entity extension and late surcharge payment on July 31, 2026. Applicant hereby formally reaffirms Small Entity status under 37 CFR § 1.27.

Applicant authorizes the Office of Patent Application Processing (OPAP) to:

(a) Apply the Small Entity fee schedule to all statutory fees for Application No. 19/559,705;

(b) Credit all previously paid fees toward the outstanding statutory requirements; and

(c) Remit the applicable Small Entity fees concurrently herewith via Patent Center electronic payment, and respectfully request that if the Office determines any additional fee balance is due, the Office issue an itemized Notice of Fee Deficiency.

4. Petition for Extension of Time under 37 CFR § 1.136(a)

The Notice to File Missing Parts set an initial two-month period for reply expiring June 9, 2026. Applicant previously purchased a two-month extension of time on July 31, 2026 (extending the period through August 10, 2026).

The instant complete response is submitted on or before **November 9, 2026** (the absolute maximum statutory 5-month extension deadline under 37 CFR § 1.136(a), as confirmed in the October 1, 2026 Petition Decision).

Accordingly, Applicant petitions for the applicable extension of time under 37 CFR § 1.136(a) and tenders the requisite fee authorization.

III. COMPLIANCE WITH OCTOBER 1, 2026 PETITION DECISION (OPPT)

Applicant respectfully acknowledges receipt of the Office of Petitions Decision (OPPT) dated October 1, 2026 (signed by Attorney Advisor Cliff Congo), dismissing Applicant's prior petition under 37 CFR § 1.183.

The Decision noted that:

> *"The last day Applicant can respond to the Notice to File Missing Parts, with the maximum five month extension of time, is November 9, 2026. Here, Applicant has failed to explain why the available extensions of time are not sufficient to address his requested relief. Moreover, Applicant has failed to explain why his ongoing litigation activities prevent him from filing a response to the Notice to File Missing Parts and then requesting suspension of action under 37 CFR 1.103."*

Applicant has complied strictly with the guidance provided by the Office of Petitions:

1. Rather than pursuing further burdensome Rule 183 petitions or requests for reconsideration, Applicant has focused on the complete, immediate perfection of all pre-examination filing formalities;
2. By submitting the compliant declaration listing both residence and mailing addresses, replacement abstract on a separate sheet, small entity fee authorization, and extension of time, **this application is now in 100% complete compliance with all requirements of the pre-examination notices**; and
3. Applicant respectfully requests that the Office of Patent Application Processing (OPAP) issue the formal **Notice of Acceptance of Application** (or updated Filing Receipt) and forward this application to Technology Center 2100 (Examiner Andrea Bennett) for examination.

IV. CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103

Pursuant to MPEP § 709, a request for suspension of action under 37 CFR § 1.103 cannot be granted while a notice to file missing parts is outstanding. Therefore, Applicant submits his concurrent Request for Suspension under § 1.103(a) as a **conditional request** to take effect immediately upon OPAP's determination that the pre-examination formalities have been completely cured and the application has been docketed for examination in Technology Center 2100.

The suspension is requested for good and sufficient cause based on the documented collateral litigation and constructive confinement issues currently pending resolution before the United States District Court for the Southern District of Texas (Civil Action No. 4:26-CV-08794, *Aguiar Marcano v. Pickett et al.*).

V. CONCLUSION

Applicant has fully and completely satisfied all requirements of the pre-examination notices. It is respectfully requested that the application be accepted and processed for substantive examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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